
Engineer's Determination — Supplementary Claim CTR-NRB4-0052

Nandira River Bridge Project — Package NRB-4

Document Reference:	ENG-NRB4-0024
Date:	05-Nov-2021
Contract No.:	NHIA/NRB4/CW/2020-01
From:	Engineer, Meridian Engineering Consultants
To:	Contractor, Sagara Constructions Pvt. Ltd.

Subject: Determination — Supplementary Claim CTR-NRB4-0052 — Pier P3 Utility Conflict

We refer to your supplementary claim CTR-NRB4-0052 dated 08-Oct-2021, rainfall report MET-NRB4-2021-03 dated 05-Oct-2021, and programme update PGM-NRB4-Rev04 dated 15-Oct-2021, seeking an additional extension of 6 weeks beyond the 10 weeks granted under our determination ENG-NRB4-0019 dated 25-Sep-2021, on the basis that monsoon conditions reduced the effectiveness of the mitigating works at Piers P1, P2, P4 and P5.

Having reviewed the particulars submitted, we make the following determination:

1. **RAINFALL DATA:** We accept that the 2021 monsoon season, as recorded in MET-NRB4-2021-03, was heavier than the five-year average for this location. We note, and the Contractor's own report confirms, that no 24-hour period during the season met the 100mm threshold for an Adverse Weather Event under Particular Conditions Part D.2. The season accordingly falls within the ordinary Monsoon Period defined at Particular Conditions Part D.1, which is expressly not independently compensable.
2. **CONCURRENT DELAY:** The reduced productivity at Piers P1, P2, P4 and P5 during June to September 2021 arose from ordinary seasonal conditions that would have affected those works, and the Contractor's programme generally, regardless of whether the Pier P3 event had occurred. A risk allocated to the Contractor under Part D.1 does not become compensable merely because it coincides in time with, or reduces the effectiveness of mitigation for, a separate compensable event. The two causes are concurrent but distinct, and only the delay genuinely attributable to the Sub-Clause 8.4(c) event — the Pier P3 utility conflict — falls to be assessed under that Sub-Clause.
3. **REASSESSMENT:** We have reviewed the critical path analysis in PGM-NRB4-Rev04 against our own analysis underlying ENG-NRB4-0019 and find no basis to revise the net delay attributable to the Pier P3 event. The 10-week extension determined in ENG-NRB4-0019 remains our assessment of the Contractor's entitlement under Sub-Clause 8.4(c) and is not increased by this determination.
4. **DETERMINATION:** The supplementary claim for a further 6-week extension is rejected. The extension of the Time for Completion of 10 weeks granted under ENG-NRB4-0019 stands, and the revised Time for Completion notified in that determination is unchanged.

This determination is issued under Sub-Clause 20.1 and relates solely to the matters raised in CTR-NRB4-0052.

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ENGINEER'S DETERMINATION

Signed: Engineer's Representative
Meridian Engineering Consultants